

		The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) California Rules of Court rule 3.1348(a) further provides that "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a). Plaintiff has not shown that he acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The court must therefore award sanctions, although it will reduce the amount requested to take into account the fact that all three motions were nearly identical, there was no need to review any oppositions or prepare any replies, and that the court will hold only one hearing for all three motions. Defendant shall give notice of this ruling to both of Plaintiff's mailing addresses with a courtesy copy by electronic mail.
9	Martinez vs. County of Orange 30-2021-01208196	<u>Motion for Summary Judgment and/or Adjudication</u> Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for Summary Judgment is DENIED. Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for, in the Alternative Summary Adjudication is GRANTED as to the 7th Cause of Action and DENIED as to the remainder of the causes of action.

		Plaintiff Ricardo Martinez's Objections to Defendants' Evidence are SUSTAINED as to evidentiary objection number 17, and SUSTAINED to the extent statements are used for the truth of the matter asserted and OVERRULED to the extent statements are used as the basis for the expert witness' opinion as to evidentiary objection numbers 18-20. The remainder of the evidentiary objections are OVERRULED. Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Objections to Plaintiff's Evidence are SUSTAINED to the extent statements are used for the truth of the matter asserted and OVERRULED to the extent statements are used as the basis for the expert witness' opinion as to evidentiary objection numbers 2-6. The remainder of the evidentiary objections are OVERRULED. Defendants County of Orange, Deputy J. McAuliffe, Deputy M. Sulham, Deputy A. Copeland, Deputy F. Deleo, Deputy S. Orellana, and Deputy M. Odom move for summary judgment on the Complaint filed by Plaintiff Ricardo Martinez. In the alternative, Defendants move for summary adjudication as to the 1st through 8th Cause of Action of the Complaint based upon 16 separately enumerated issues. <u>Standard for Summary Judgment or Summary Adjudication</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (Code Civ. Proc., § 437c, subd.
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		(f)(1).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant <i>must</i> indeed present evidence." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) "In some instances . . . , 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.)
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		Nonetheless, in ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (<i>Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>1st Cause of Action (False Arrest) – Issues 1</u> "[T]he elements of a tortious claim of false imprisonment are: (1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief." (<i>Jon Davler, Inc. v. Arch Insurance Company</i> (2014) 229 Cal.App.4th 1025, 1034). Defendants Deputy J. McAuliffe, Deputy M. Sulham, Deputy A. Copeland, Deputy F. Deleo, Deputy S. Orellana, and Deputy M. Odom (collectively Deputy Defendants) contend they are entitled to summary adjudication as to this cause of action because the arrest was warranted under
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		Penal Code section 69 and/or Penal Code section 148. Penal Code section 69 states: (a) Every person who attempts, by means of any threat or violence, to deter or prevent an executive officer from performing any duty imposed upon the officer by law, or who knowingly resists, by the use of force or violence, the officer, in the performance of his or her duty, is punishable by a fine not exceeding ten thousand dollars (\$10,000), or by imprisonment pursuant to subdivision (h) of Section 1170, or in a county jail not exceeding one year, or by both such fine and imprisonment. (Pen. Code, § 69.) In addition, Penal Code § 148 states that a person can be placed under arrest if they “willfully resist, delay, or obstruct any police officer, peace officer, or an emergency medical technician . . . in the discharge or attempt to discharge any duty of his or her office or employment.” (Pen. Code § 148(a)(1).) Here, there is a triable issue of fact as to whether Plaintiff willfully resisted or obstructed the Deputy Defendants in the discharge of their duty, and thus, whether Sections 69 or 148 apply in this case. Defendants contend the arrest was warranted because Plaintiff resisted and actively pulled away from the deputies. (Def.s’ Separate Statement of Undisputed Material Facts in Supp. of Mot. for Summ. J. (Separate Statement), Undisputed Material Facts Numbers 7, 9, 11-13.) However, in his Complaint, his deposition testimony, and written discovery responses, Plaintiff disputes this. (See Pltf.’s Responses to Def.s’ Separate Statement (Responsive Statement, Responses Numbers 7, 9, 11-13; Pltf.’s Compendium of Evid. in Opp’n to Def.s’ Mot for Summ. J (Pltf.’s Evid.), Exh. 1 at p. 39:25-40:7, Exh. 4.) Defendants have submitted the surveillance video of the interactions between Plaintiff and Deputy
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		Defendants on the day in question, but it does not conclusively establish, as a matter of law, that Deputy Defendants' version of events – rather than Plaintiff's – is true. The court must deny summary adjudication as to the 1st Cause of Action and Issue 1. <u>2nd Cause of Action (Negligent Use of Nondeadly Force), 3rd Cause of Action (Excessive Use of Force — Unreasonable Arrest), 4th Cause of Action (Battery By A Police Officer) – Issues 2-4</u> The Deputy Defendants contend they are entitled to summary adjudication on the 2nd, 3rd, and 4th Causes of Action because their use of force was objectively reasonable under the circumstances. The Fourth Amendment of the United States Constitution applies an objective reasonableness standard to claims of excessive force. (See <i>Scott v. Harris</i> (2007) 550 U.S. 372, 381.) In addition, Penal Code section 835 provides: An arrest is made by an actual restraint of the person, or by submission to the custody of an officer. The person arrested may be subjected to such restraint as is reasonable for his arrest and detention. (Pen. Code, § 835.) "Because the reasonableness standard nearly always requires a jury to sift through disputed factual contentions, and to draw inferences therefrom, . . . summary judgment or judgment as a matter of law in excessive force cases should be granted sparingly." (<i>Torres v. City of Madera</i> (9th Cir. 2011) 648 F.3d 1119, 1125.) "For the purposes of summary judgment, even in a qualified immunity case, we must assume the nonmoving party's version of the facts to be correct." (<i>Liston v. County of Riverside</i> (9th Cir. 1997) 120 F.3d 965, 977.) The facts discussed above show that there is a triable issue of fact as to whether Defendants' use of force was objectively reasonable. Defendants contend that the type and amount of force was minimal, but Plaintiff provides evidence that he sustained severe injuries resulting from the force applied by Defendants. (See Responsive Statement, Response Number 17.) Such evidence
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		could support a determination by a reasonable jury that the Deputy Defendants used excessive force. The court must deny summary adjudication as to these causes of action and these issues. <u>5th Cause of Action (Violation of the Tom Bane Civil Rights Act (Civ. Code § 52.1)) and 56th Cause of Action (Violation of the Ralph Civil Rights Act of 1976 (Civ. Code § 51.7)) – Issues 5-6</u> With respect to the 5th Cause of Action and 6th Cause of Action, Defendants contend they are entitled to summary adjudication because Plaintiff’s civil rights were not violated; Deputy Defendants did not use threats, intimidation, coercion, or violent acts; and Deputy Defendants use of force was objectively reasonable under the circumstances. As the Court of Appeal has explained: The Bane Act makes it unlawful for any person to interfere by threat, intimidation, or coercion, or attempt to interfere by threats, intimidation, or coercion, with the exercise or enjoyment by any individual secured by the Constitution or laws of California. [Citation.] “` “The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., ‘threats, intimidation or coercion’), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law.” ’ ” [Citation.] An officer cannot claim qualified immunity under the Bane Act. [Citation.] The Bane Act does not require that “the offending ‘threat, intimidation or coercion’ be ‘independent’ from the constitutional violation alleged.” [Citation.] Rather, where an unlawful arrest is properly pleaded and proved, “the egregiousness required by [Civ. Code] [s]ection 52.1 is tested by whether the circumstances indicate the arresting officer had a specific intent to violate the arrestee’s right to freedom from unreasonable seizure, not by whether the evidence shows something beyond the
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		coercion 'inherent' in the wrongful detention." [Citation.] There are two requirements for a finding of specific intent. [Citation.] First, the court must make the legal determination of whether the " "right at issue clearly delineated and plainly applicable under the circumstances of the case." ' ' ' [Citation.] Second, if the first condition is answered in the affirmative, " "the jury must make the second, factual, determination. Did the defendant commit the act in question with the particular purpose of depriving the citizen victim of his enjoyment of the interests protected by that ... right? If both requirements are met, even if the defendant did not in fact recognize the [unlawfulness] of his act, he will be adjudged as a matter of law to have acted [with the requisite specific intent]—i.e., 'in reckless disregard of constitutional [or statutory] prohibitions or guarantees.' " ' ' ' [Citation.] (<i>Murchison v. County of Tehama</i> (2021) 69 Cal.App.5th 867, 896.) In <i>Murchison v. County of Tehama</i>, the Court of Appeal found that "the rights at issue are plaintiff's constitutional rights to be free from unlawful search and excessive force." (<i>Murchison v. County of Tehama, supra</i>, 69 Cal.App.5th at p. 897.) The Court of Appeal then concluded that the use of excessive force constituted an unreasonable seizure under article I, section 13 of the California Constitution, so that the plaintiff in that case had properly alleged the violation of his civil rights and a violation of the Bane Act. (<i>Ibid.</i>) The Court of Appeal also has explained that: The Ralph Act is an antidiscrimination scheme. . . . Section 51.7, subdivision (a), states that everyone in California has "the right to be free from any violence, or intimidation by threat of violence, committed against their persons or property because of political affiliation, or on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51, or position in a labor dispute, or because another person perceives them to
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		have one or more of those characteristics. The identification in this subdivision of particular bases of discrimination is illustrative rather than restrictive.” (<i>Gabrielle A. v. County of Orange</i> (2017) 10 Cal.App.5th 1268, 1290.) In order to make out a claim under the Ralph Act, “a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right.” (<i>Id.</i> at p. 1291.) Thus, under <i>Murchison v. County of Tehama</i> and <i>Gabrielle A. v. County of Orange</i>, Plaintiff’s allegations that the Deputy Defendants used excessive force are sufficient as a matter of law to make out claims that Defendants violated Plaintiff’s civil rights and violated the Bane and Ralph Acts. In addition, for the reasons stated above, whether the Deputy Defendants actually used excessive force or threatened or committed violent acts against Plaintiff is a disputed issue of material fact that must be decided at trial and cannot be decided on summary judgment. Finally, Plaintiff testified that he is Hispanic and the other man involved in the altercation was Caucasian. (Pltf.’s Evid., Exh. 1 at 39:15-19.) Plaintiff further testified that the Deputy Defendants “did not even touch him [the other man]. Nothing. But they did everything to me.” (<i>Ibid.</i>) This is sufficient to create a triable issue of fact as to whether Deputy Defendants took improper actions against Plaintiff because he is a member of class protected by the Ralph Act. The court is required deny summary adjudication on the 5th Cause of Action and 6th Cause of Action and these issues. <u>7th Cause of Action (Intentional Infliction of Emotional Distress) and 8th Cause of Action (Negligent Infliction of Emotional Distress) – Issues 7-8</u>
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		does not prove that Deputy Defendants were not negligent or were not using excessive force, it is evidence that the Deputy Defendants did not act in a manner intended to cause harm to Plaintiff or with the realization that injury would result to Plaintiff. It also is evidence that Deputy Defendants' conduct was not so extreme as to exceed all bounds of what is usually tolerated in civilized society. The burden is then shifted to Plaintiff to show a material issue of disputed fact. However, Plaintiff is unable to point to any evidence that Deputy Defendants acted intentionally or with knowledge that injury would result to Plaintiff. Nor does Plaintiff submit any argument or evidence that Deputy Defendants' conduct was so extreme and outrageous as to be beyond the bounds of civilized society. Plaintiff only points to evidence that Deputy Defendants misapplied their training and applicable policies, but that is only evidence of negligence, not intentional or outrageous conduct. (See, e.g., Responsive Statement, Response Number 8 ["Defendants attempt to imply that use of the rear wrist locks at that time and under these circumstances was POST approved. That is clearly disputed. At the time the Deputy Defendants used rear wrist locks on Plaintiff, it was not necessary under the totality of the circumstances."].) There is, however, no need to show intentional or outrageous conduct with respect to the 8th Cause of Action. Plaintiff need only show that Deputy Defendants conduct was negligent. For the reasons explained above, Plaintiff has provided evidence to create a triable issue of fact as to whether Deputy Defendants used force that was not reasonable or appropriate under the circumstances. (See, e.g., Responsive Statement, Response Number 12.) The court must grant summary adjudication as to the 7th Cause of Action and deny as to the 8th Cause of Action. <u>Claims Against Defendant County of Orange – Issues 9-16</u> Under the California Tort Claims Act, public employees are liable for injuries caused by their
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		acts and omissions to the same extent as private persons. (Gov't Code, § 820, subd. (a).) However, public agencies and organizations are "liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would . . . have given rise to a cause of action against that employee," unless "the employee is immune from liability." (Gov't Code, § 815.2; see <i>Zelig v. County of Los Angeles</i> (2002) 27 Cal.4th 1112, 1128 ["Vicarious liability is a primary basis for liability on the part of a public entity, and flows from the responsibility of such an entity for the acts of its employees under the principle of respondeat superior."].) Here, Defendant County of Orange's liability arises if its employees, the Deputy Defendants, only to the extent that the Deputy Defendants are liable and their improper actions were taken within the scope of their employment. There is no argument that the conduct at issue here was taken within the scope of Deputy Defendants' employment with Defendant County of Orange. Thus, because summary adjudication cannot be granted as to the individual Deputy Defendants as to the 1st through 6th and 8th Causes of Action, summary adjudication cannot be granted as to the Defendant County of Orange as to the claims. However, because the court has granted summary adjudication to the Deputy Defendants as to the 7th Cause of Action, the court must grant summary adjudication to Defendant County of Orange as to the 7th Cause of Action. Plaintiff shall give notice of this ruling.
10	Sentinel Restaurant and Hospitality Group, LLC vs. My OC Villas, LLC 30-2020-01176078	<u>ADR Review Hearing</u> In light of the court's orders regarding Defendant Amy Hsiao's Motion to Dismiss for Failure to Bring to Trial and the flings presented by the parties regarding the status of the arbitration proceedings, the court takes this matter OFF CALENDAR.